

**CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT**  
**ICE AND EVENTS CENTER USER AGREEMENT**

This Agreement ("Agreement"), dated this \_\_\_\_\_ day of \_\_\_\_\_, 2013, is by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming ("City"), located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Cheyenne Warriors Professional Indoor Football Team, LLC, a limited liability company organized under the laws of the State of Wyoming ("Cheyenne Warriors"), having its principal office at 113 West 17<sup>th</sup> Street, Cheyenne, Wyoming 82001. This Agreement pertains to the City of Cheyenne Owned Ice and Events Center ("Events Center") located at 1530 West Lincolnway, Cheyenne, Wyoming 82001. The Events Center is administered by the City of Cheyenne Parks and Recreation Department ("City").

WHEREAS, the City owns, manages, and operates the Events Center and has the power and authority to lease the use thereof to others for the purpose of conducting certain events and other activities; and

WHEREAS, Cheyenne Warriors desires to use certain portions of the Events Center as indicated on Appendix A to this Agreement and the City desires to license the use thereof to Cheyenne Warriors, for the purpose of holding and presenting arena football games and related practices (collectively referred to herein as the "Event"), all subject to the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the covenants and agreements contained herein, and intending to be legally bound hereby, the parties agree as follows:

1. Premises. City hereby grants to Cheyenne Warriors permission to use those portions of the Center set forth on Appendix A, attached hereto and incorporated herein (the "Premises"), upon the terms and conditions contained herein. Only Cheyenne Warriors' members, prospective members, designated representatives and invitees are permitted by this agreement to use the Premises.
2. Term. The period of Cheyenne Warriors' use of the Premises shall be from March 28, 2013 through July 30, 2013 (the "Term"). Before the commencement of the term of this Agreement as set forth in Appendix A, the City shall make the Center available to Cheyenne Warriors, upon the payment of separate and additional charges, for (i) preparation of the Event and delivery, move-in and set-up of Cheyenne Warriors' property and equipment; and (ii) load-out immediately following the conclusion of the Event, ending no later than the time set forth on Appendix A. Unless otherwise expressly stated herein, or otherwise agreed to in writing, all deliveries and items required for presentation of the Event shall be provided at the sole cost and expense of Cheyenne Warriors.
3. Purpose. Cheyenne Warriors shall be permitted to use the Premises solely for the purpose set forth in Appendix A. Cheyenne Warriors is not permitted to use the Premises for other purposes.

4. Fees.

A. In consideration for City permission to use the Premises, Cheyenne Warriors shall pay user fees to the City according to the following rate schedule:

i. Games - \$150.00 per hour starting at 4:00pm and ending at 11:00pm in addition to the \$150.00 daily fee for a total of \$1200.00.

ii. \$150.00 for each day that turf is laid out on the arena floor.

B. The user fee for a Game shall be paid for on or before the Monday prior to the Game.

C. The daily user fee for turf shall be paid in advance and shall be paid in a lump sum on or before the last day of the month prior to any month in which turf is to be paid out on the arena floor. For example, the daily user fee for April shall be computed by multiplying the number of days that turf will be laid out of the arena floor by the daily fee specified in subsection A., and all such fees shall be paid in a lump sum on or before March 31.

D. All user fees owed to the City shall be paid with Credit Card/Cashiers Check/Money Order or Cash. The City will not accept checks as payment for user fees.

F. In the event Cheyenne Warriors fails, neglects, or refuses to pay the user fees at the times and in the amounts specified herein, the City may, in addition to other remedies provided by law, declare a forfeiture of this Agreement and may revoke the permission granted herein to Cheyenne Warriors to use the Premises for the purposes stated herein until such time as Cheyenne Warriors complies with the terms and conditions of this Agreement.

E. In addition to the payment of user fees as stated above, Cheyenne Warriors agrees to provide no less than five (5) workers to assist with the installation of turf and with the removal of turf to accommodate special events which may be scheduled in the Events Center by the City so long as such events are not scheduled during game times or related practice times. This service will be provided by Cheyenne Warriors at no charge to the City.

5. Liquor. Prior to the sale, possession or consumption of alcoholic liquors or malt beverages at the Events Center, Cheyenne Warriors shall comply with all state laws and with applicable City ordinances, regulations and policies, including permit requirements pursuant to Chapter 5.12 of the Cheyenne City Code. The Chief of Police may require Cheyenne Warriors to provide on-site security, through law enforcement personnel, during any Event which involves the sale, possession or consumption of alcoholic liquors or malt beverages. The City reserves the right to deny applications for permits under Chapter 5.12 of the Cheyenne City Code in the event of repeated or consistent violations of state or local liquor laws or the terms and conditions of this Agreement.

6. Advertising. The City will allow Cheyenne Warriors to display advertising in the interior portions of the Events Center as stated in Appendix B (see attached form).

7. Property–Liability. With the express prior written approval of the City’s Recreation Coordinator–Ice and Events, Cheyenne Warriors shall be permitted to install items of personal property within the team locker rooms which may be used by Cheyenne Warriors in connection with arena football games and practices, provided however, that the installation of any such items shall not be permitted if installation would result in any significant damage or injury to the Events Center or to any equipment, facilities, or components thereof. Any such items installed by Cheyenne Warriors shall be removed from the Events Center within a reasonable period of time following the termination of this Agreement. Cheyenne Warriors shall be liable for the cost of repair or replacement of any and all City property which is damaged or destroyed as a result of Cheyenne Warriors’ use of the Events Center, normal wear and tear excepted. Cheyenne Warriors expressly assumes liability for any loss or damage to City property which is caused by its principals, officers, employees, agents, representatives, volunteers or players. Cheyenne Warriors expressly assumes liability for any loss or damage to City property caused by persons or entities who have been invited by Cheyenne Warriors to be present at the Events Center for purposes permitted under this Agreement, and for any such loss or damage caused by their officers, employees, agents, representatives, volunteers or players. In addition, any person who causes any loss, injury or damage to the Events Center or to any other property or facilities of the City may be banned from the Events Center by the Recreation Coordinator–Ice and Events, in his or her sole discretion, after consultation with Cheyenne Warriors.

8. Failure to Pay. In the event that Cheyenne Warriors fails to pay user fees required by this Agreement on or before the specific payment dates, the City reserves the right to impose finance charges equal to 1.5 % per month (18% per annum) on such unpaid amounts. In the event of default of payment pursuant to Section 21 below, the City reserves the right to terminate this Agreement and retain all fees previously paid by Cheyenne Warriors. Costs of collection and reasonable attorney’s fees incurred in connection therewith shall be paid by Cheyenne Warriors.

9. City’s Responsibilities. The City will provide the following during Cheyenne Warriors’ periods of use of the Premises.

A. Electricity and other utilities for lighting, heating and air conditioning, as customarily provided by the City for similar events at the Events Center.

B. Cleaning and janitorial services will be provided by City staff in locker rooms 3 and 4 only when a representative of Cheyenne Warriors is present. Cheyenne Warriors shall be generally responsible for janitorial maintenance in locker rooms 3 and 4.

C. City staff customarily provided for similar events at the Events Center.

D. One premises supervisor who shall be in attendance during any Game or practice associated with the Event.

E. Wireless internet and router, provided, however, that the City does not guarantee any level of service and shall not be responsible for any loss or discontinuation of service.

F. The City will have no obligation to sell or assist in the sale of tickets or ticket packages for Cheyenne Warriors' football games or other events. In the event Cheyenne Warriors requests that the City sell or assist in the sale of tickets, the City may assist subject to such terms and conditions as the City may deem appropriate. In any event, the City will charge of fee of Two Dollars (\$2.00) for each ticket or ticket package which is sold by or with the assistance of the City.

G. In the event that Cheyenne Warriors fails to pay any user fee in the amounts or at the times specified in this Agreement, the City will issue invoices for any such outstanding amounts and Cheyenne Warriors shall pay the amount of any such invoices within ten (10) business days after receipt.

10. Cheyenne Warriors' Responsibilities. Cheyenne Warriors agrees to comply with the following terms and conditions during its use of the Premises.

A. Except as otherwise permitted by the City, no alcoholic beverages, malt beverages or glass containers shall be brought on the Premises, by players, coaches or staff.

B. No outside food or beverages may be consumed by players, coaches, officers, directors or business invitees of Cheyenne Warriors in the absence of express written consent of the City's Director of Leisure Services or the Recreation Coordinator–Ice and Events, provided, however, that Cheyenne Warriors' sponsors may choose to donate meals to be consumed by Cheyenne Warriors players, coaches, and team officials on game days if such donations are approved by the Recreation Coordinator Ice and Events. Requests for approval of donations must be submitted to the Recreation Coordinator at least two weeks (14 days) prior to donation.

C. Since Cheyenne Warriors' use of the Premises is for the purpose of playing arena football, all players shall wear a helmet and necessary protective equipment as required by the City or applicable rules developed by organizations which govern the sport of arena football.

D. Cheyenne Warriors shall strictly adhere to the dates and the starting and finishing times of its permitted periods of use as set forth in Appendix A.

E. Cheyenne Warriors shall comply with all rules and regulations of the Events Center and with the directions of City personnel responsible for the operation or security of the Events Center.

F. Cheyenne Warriors shall provide security personnel if requested by the City pursuant to Sections 5 and 14 of this Agreement.

G. Cheyenne Warriors agrees not to do any act or allow any act to be done during the Term of this Agreement which shall mar, deface or injure any part of the Events Center. Upon expiration of the Term, Cheyenne Warriors shall surrender possession of the Premises to the City in as good condition and repair as at the beginning of the Term, excepting normal wear and tear.

H. Cheyenne Warriors shall use the Events Center and Premises only in a safe and careful manner.

I. Cheyenne Warriors shall notify the City in writing of the cancellation of any practice or game at least seventy-two (72) hours prior to the date of the practice or game. In the event, Cheyenne Warriors fails to provide at least seventy-two (72) hours notice of the cancellation of any game or practice, Cheyenne Warriors will remain liable for the user fee for the practice or game time. In the event the Events Center is closed by the City due to inclement weather, road closures, or other unusual events, the City may, in its discretion, refund user fees which were paid in advance subject to such terms and conditions as may be imposed by the City. The City retains the right, in its sole discretion, to close the Events Center after consultation with Cheyenne Warriors.

J. The birthday party room located in the lobby is available for Cheyenne Warriors' use with a charge of \$25.00 per hour and at the discretion of the City. All use by the Cheyenne Warriors of the aforementioned room must be scheduled prior to its use through the City's Recreation Coordinator–Ice and Events. Any scheduled use will be charged the hourly rate.

K. During games, Cheyenne Warriors does not have exclusive use of the entire facility. Thus, other areas of the Events Center, such as the lobby, arcade, laser tag room, and birthday party room will remain open for regular public use. Cheyenne Warriors may rent the entire Events Center facility at regular rental rates if exclusive use of the entire facility is desired. For game use, the Cheyenne Warriors will have exclusive use of inner arena areas including arena football surface, spectator stands, and team locker rooms.

L. All items of personal property owned by Cheyenne Warriors which may be stored in the team locker rooms or anywhere else on the premises shall be removed prior to the end of the Term of this Agreement. Cheyenne Warriors, and its officers, directors, members, employees, agents, representatives, players, guests, invitees, and volunteers, shall be responsible for the reasonable and necessary cost of repairing or replacing any items within the team locker rooms which are damaged or destroyed as a result of Cheyenne Warriors' activities under this Agreement. The City shall not be responsible for lost or stolen articles.

M. Cheyenne Warriors will pay the following charges for use of the City's photocopier: \$0.20 per black and white copy and \$0.30 per color copy. Cheyenne Warriors will be invoiced on a monthly basis.

N. Cheyenne Warriors may sell approved merchandise in designated areas only. Cheyenne Warriors will retain 100% of merchandise sales. The placement of merchandise and the sale thereof must be approved by the City Clerk and Cheyenne Warriors must obtain any and all permits which may be required for merchandise sales.

11. Concessions. The City specifically reserves to itself and its usual Center concessionaires the exclusive right to provide or sell, and to retain the proceeds from the sale of all food and beverages and all other concessions at the Event, excluding sales of alcoholic liquors or malt beverages as permitted under Chapter 5.12 of the Cheyenne City Code. With the exception of sales of alcoholic liquors and malt beverages, all concession sales of food or beverages provided to Cheyenne Warriors, and its players, coaches, team officials, guests, invitees, or other Event attendees, shall be at the standard cost charged to other members of the public who purchase concession items.

12. Indemnification; Governmental Immunity. Cheyenne Warriors agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, authorized agents and volunteers against any and all claims, demands, and causes of action, including attorney's fees and costs, and environmental liability arising during or resulting from Cheyenne Warriors' use of the Events Center pursuant to this Agreement, and shall provide insurance coverage of the types and amounts as set forth in this Agreement. Cheyenne Warriors acknowledges its understanding that this paragraph creates financial responsibilities to the City. The City reserves all defenses and immunities, and specifically reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. §1-39-101, *et seq.*

13. Insurance—General Conditions.

A. Cheyenne Warriors shall file a Certificate of Insurance with the City of Cheyenne verifying each type of insurance coverage listed below.

B. The Certificate of Insurance shall be submitted to and approved by the City's Risk Manager prior to the commencement of any activities under this Agreement.

| C. Type of Coverage                                                              | Minimum Limits                                                                                                        |
|----------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------|
| Commercial General Liability<br>(Including Products and<br>Completed Operations) | \$1,000,000 per Occurrence<br>\$2,000,000 Aggregate                                                                   |
| Workers' Compensation<br>OR<br>Employer's Liability                              | Statutory<br>\$500,000 Each Accident<br>\$500,000 Each Disease-<br>Policy Limit<br>\$500,000 Disease/Each<br>Employee |

D. It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of this Agreement. Cheyenne Warriors shall have the affirmative obligation to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage

required by this Agreement, and the failure to do so shall be construed to be a breach of this contract.

E. The City of Cheyenne shall be named as an additional insured on the Cheyenne Warriors' insurance policies, except workers' compensation, and Cheyenne Warriors shall provide a copy of the endorsements providing this coverage.

F. The City has the right to reject a certificate of insurance if any insurer of Cheyenne Warriors is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this contract shall have a minimum A.M. Best rating of A- (excellent).

G. The City has the right to review the insurance certificates of any and all subcontractors engaged by Cheyenne Warriors to provide any services related to this Agreement. Further, the City requires that subcontractors' insurance coverage's be at least equivalent to that required of Cheyenne Warriors.

H. The City has the right to increase the required minimum limit of liability with respect to any activity under this Agreement that may cause increased risks or hazards. Examples of increased hazard include, but are not limited to:

- i. handling of hazardous materials; and
- ii. activities involving large congregations of people.

I. The City shall have the right to consult with the Cheyenne Warriors' insurance agents for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Cheyenne Warriors' obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to:

- i. exclusions;
- ii. deductibles; and
- iii. claims in progress which could significantly reduce the annual aggregate limit.

J. The City reserves the absolute right to terminate this Agreement upon written notice to Cheyenne Warriors if Cheyenne Warriors does not deliver to the City the required documents of insurance required under the provisions of this Insurance section of the Agreement. In the event of such termination by the City, there shall be no further liability of any kind or nature whatsoever owed by the City to Cheyenne Warriors, and the City shall retain all rights under law.

14. Security.

A. If requested by the City, Cheyenne Warriors shall provide and pay for its own security personnel in sufficient numbers to police Cheyenne Warriors' use of the Premises and any spectators, guests or invitees attending any Cheyenne Warriors' event. Any security personnel to be provided by Cheyenne Warriors must be approved in writing by the City's Chief of Police, or authorized designee, no later than ten (10) days in advance of Cheyenne Warriors' use of the Premises. In the event the City requests Cheyenne Warriors to provide such security and Cheyenne Warriors fails to obtain City approval of personnel in a timely fashion or fails to provide adequate security, as determined by the City in its sole discretion, the City shall have the right to provide security personnel at the regular rate for weekday duty and at double-time rate for weekend duty to be paid by Cheyenne Warriors or, alternatively, shall have the right to terminate this Agreement.

B. If, in the sole judgment of the City, Cheyenne Warriors' use of the Premises at any time creates an unreasonable risk of harm to the safety of the Events Center, City property, or persons on the Premises, the City reserves the right to eject from the Premises any person making use of the Premises through or in association with Cheyenne Warriors, to restrict Cheyenne Warriors' activities on the Premises, to cancel any period of Cheyenne Warriors' use of the Premises or to terminate this Agreement in its entirety. Any such action by the City shall not be deemed to be a breach of this Agreement and the City shall not be liable for damages for such an action, nor shall the City be obligated to return to Cheyenne Warriors any portion of any fee paid to City hereunder. The City's reservation of rights in this section shall not in any way relieve or limit Cheyenne Warriors' duty to indemnify the City pursuant to this Agreement.

15. Responsibility for Safety. City and Cheyenne Warriors' personnel shall inspect the Premises prior to each use thereof by Cheyenne Warriors. It is mutually understood and agreed that Cheyenne Warriors' use of the Premises and the Events Center may be suspended by the City in its sole discretion if an inspection reveals hazards or defects which present an unreasonable risk of harm.

16. Assumption of Risk. Cheyenne Warriors, and all persons using the Events Center and Premises hereunder, for any purpose, under this Agreement, and all invitees of Cheyenne Warriors, assume all risk and danger incidental to the use of the Events Center and Premises for the purposes of this Agreement. Since Cheyenne Warriors is using the Premises for the purpose of conducting arena football games and practices, Cheyenne Warriors acknowledges that there are inherent risks and dangers including, without limitation, the danger of being injured, paralyzed, or killed through contact with other players or objects in connection with arena football.

17. Control of Premises. The City and its authorized representatives shall have the right at all times to enter upon and have access to the Events Center and the Premises. In contracting the use of the Premises to Cheyenne Warriors, it is understood that the City does not relinquish the right to control the management thereof and to enforce all necessary rules and regulations. The decision of City's representative as to the number of persons that can safely and freely move about in the Events Center shall be final.

18. Reservation of Rights. The City reserves all rights not expressly granted to Cheyenne Warriors hereunder, and may, during the Term, use any or all portions of the Premises not specifically licensed to Cheyenne Warriors hereunder. The City reserves the right to eject from the Events Center and Premises any person for any reason which the City, in its sole discretion, deems sufficient, after consultation with Cheyenne Warriors.

19. Licenses. The City shall secure licenses and permits that may be required by or in connection with use of the Premises for the Event which may be required by any performing arts societies, such as ASCAP, BMI and/or SESAC.

20. Promotional Activity. Cheyenne Warriors agrees not to publicly conduct any promotional activity and not to advertise any Event to be conducted at the Events Center without the prior consent of the City. In addition to the requirement that promotional and advertising must have the prior approval of the City, all advertising and promotional activities relating to the Event shall be the sole responsibility of Cheyenne Warriors.

21. Termination. In the event Cheyenne Warriors at any time fails to comply with any of the terms and conditions of this Agreement, and fails to cure such non-compliance within five (5) days of its receipt of written notice from the City describing such noncompliance, the City may terminate this Agreement and retain as damages any fees paid by Cheyenne Warriors under this Agreement, without prejudice to any other legal rights or remedies the City may have.

22. Assignment. Cheyenne Warriors may not assign its right to use the Premises to any other person, group or organization without the express written consent of the City which the City may grant or withhold, in its sole discretion.

23. Independent Contractors. The relationship between the City and Cheyenne Warriors is that of independent contractors and not agents or employees. Under no circumstances shall this Agreement be considered a contract of partnership or joint venture. Neither party shall be liable for any of the debts, accounts, obligations or other liabilities of the other party, and neither party shall have any authority to obligate or bind the other party in any manner except as may be expressly provided herein.

24. Force Majeure. In the event the City is unable to perform any of the terms or conditions of this Agreement due to events or causes outside the City's control, such as destruction or damage to the Events Center or Premises or the unfitness of the Events Center or Premises for occupancy as a result of fire or act of God, riot, labor, strike, national or local emergency, or other cause not entirely within its control, the City shall not be deemed to be in breach of this Agreement or liable to Cheyenne Warriors for damages, but shall return to Cheyenne Warriors any portion of the fees paid to the City by Cheyenne Warriors, less the cost of any expenses incurred by the City hereunder.

25. Applicable Law. This Agreement shall be construed and enforced in accordance with the laws of the State of Wyoming. Any disputes arising from this Agreement shall be brought in the courts of the First Judicial District, Laramie County, Wyoming.

26. Entire Agreement. This Agreement consisting of ten (10) pages including Appendix A and Appendix B, constitutes the entire Agreement between the City and Cheyenne Warriors and cannot be amended except in writing signed by both parties. The City shall not be bound by any agreements, conditions, representations or warranties relating to the Premises or Cheyenne Warriors' use thereof, oral or written, express or implied, not contained in this Agreement.

IN WITNESS WHEREOF, the City of Cheyenne and Cheyenne Warriors have executed this Agreement as of the date and year first above written.

CHEYENNE WARRIORS FOOTBALL CLUB,  
LLC.

By \_\_\_\_\_ (printed \_\_\_\_\_ name):

Title: \_\_\_\_\_

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

CITY OF CHEYENNE

\_\_\_\_\_  
Richard L. Kaysen, Mayor

Date: \_\_\_\_\_

(SEAL)

ATTEST:

\_\_\_\_\_  
Carol Intlekofer, City Clerk

## APPENDIX A

- I. PREMISES - PORTIONS OF EVENTS CENTER SUBJECT TO USER AGREEMENT:  
Arena surface, Team Locker Room, Locker Rooms
- II. TERM:  
Periodic times to be scheduled and mutually agreed upon  
Beginning: March 28, 2013  
Ending: July 30, 2013  
Time: 8:00 a.m. - 11:59 p.m.
- III. PURPOSE OF USER AGREEMENT:  
To provide the Events Center for seven (7) arena football games and for related practices in accordance with the schedule to be mutually agreed upon between the City and Cheyenne Warriors and subject to the terms and conditions of this Agreement.

## APPENDIX B

Advertising placed by or for Cheyenne Warriors' football games shall not cover any existing advertising already placed in the Ice and Events Center, with the exception of dasher boards. Cheyenne Warriors may place advertising over the dasher boards, but only during official area football games and practice.

All advertising placed by or for Cheyenne Warriors must be removed prior to the termination of this Agreement.